

STATE OF NEW YORK

2440--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 16, 2025

Introduced by M. of A. SIMONE, LASHER, SHIMSKY, CRUZ, GLICK, McDONOUGH, REYES, EPSTEIN, GALLAHAN, LUNSFORD, K. BROWN, TAPIA, GONZALEZ-ROJAS, DAVILA, O'PHARROW, BRAUNSTEIN, KELLES, BERGER -- read once and referred to the Committee on Codes -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the criminal procedure law, in relation to cases terminated due to mental disease or defect

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision 2 of section 730.40 of the criminal procedure
2 law, as amended by chapter 7 of the laws of 2013, is amended to read as
3 follows:

4 2. (a)(1) When a local criminal court has issued a final order of
5 observation, it must:

6 (A) order the institution in which the defendant is confined to make a
7 single point of access referral for the defendant with the appropriate
8 agency closest to the defendant's last known county of residence prior
9 to discharge; and

10 (B) dismiss the accusatory instrument filed in such court against the
11 defendant and such dismissal constitutes a bar to any further prosecution
12 of the charge or charges contained in such accusatory instrument.

13 (2) Each appropriate institution shall maintain records compiling all
14 discharge planning and single point of access referrals completed pursuant
15 to subparagraph one of this paragraph and submit de-identified biannual
16 reports on such records to the commissioner and chief administrative
17 judge of the courts.

18 (b) When the defendant is in the custody of the commissioner pursuant
19 to a final order of observation, the commissioner or [~~his or her~~] such
20 commissioner's designee, which may include the director of an appropriate
21 institution, immediately upon the discharge of the defendant, must

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 certify to such court that [~~he or she~~] the commissioner or such commis-
2 sioner's designee has complied with the notice provisions set forth in
3 paragraph (a) of subdivision six of section 730.60 of this article and
4 the referral provisions set forth in paragraph (a) of this subdivision.
5 When the defendant is in the custody of the commissioner at the expira-
6 tion of the period prescribed in a temporary order of observation, the
7 proceedings in the local criminal court that issued such order shall
8 terminate for all purposes and the commissioner must promptly certify to
9 such court and to the appropriate district attorney that the defendant
10 was in [~~his or her~~] the commissioner's custody on such expiration date.
11 Upon receipt of such certification, the court must dismiss the felony
12 complaint filed against the defendant.
13 § 2. This act shall take effect on the ninetieth day after it shall
14 have become a law.